

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

Filed: \_\_\_\_\_

KINGSLEY LEWIS II,

INDEX NO. \_\_\_\_\_

Plaintiff,

Plaintiff designates New  
York County as the place of  
trial.

-against-

P.O. STEPHAN KROSKI (Shield #13842), P.O. JAMES FEOLA  
(Shield #22100), P.O. FRANKIE SOLER (Shield #27130),  
POLICE OFFICERS "JOHN or JANE" DOES, actual identities  
presently unknown, THE CITY OF NEW YORK and  
NEW YORK CITY POLICE DEPARTMENT,

**S U M M O N S**

The basis of venue is  
the County in which the  
cause of action arose.

Defendants.

**To the above named Defendants:**

**YOU ARE HEREBY SUMMONED** to answer the complaint in this action and to  
serve a copy of your answer on the plaintiff's attorneys within 20 days after the service of this  
summons, exclusive of the day of service of this summons, or within 30 days after service of  
this summons is complete if this summons is not personally delivered to you within the State  
of New York.

In case of your failure to answer this summons, a judgment by default will be taken  
against you for the relief demanded in the complaint, together with the costs of this action.

Dated: New York, New York  
March 13, 2017

**ASHER & ASSOCIATES, P.C.**  
Attorneys for Plaintiff  
111 John Street  
Fourteenth Floor  
New York, New York 10038  
(212) 227-5000

STEPHAN KROSKI (SHIELD#15642)  
25th Precinct  
120 East 119 Street  
New York, New York 10035

JAMES FEOLA (SHIELD #22100)  
25th Precinct  
120 East 119 Street  
New York, New York 10035

P.O. FRANKIE SOLER (Shield #27130)  
25th Precinct  
120 East 119 Street  
New York, New York 10035

THE CITY OF NEW YORK  
100 Church Street, 4th Floor  
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT  
1 Police Plaza  
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

KINGSLEY LEWIS II,

Plaintiff,

-against-

P.O. STEPHAN KROSKI (Shield #13842), P.O. JAMES FEOLA  
(Shield #22100), P.O. FRANKIE SOLER (Shield #27130),  
POLICE OFFICERS "JOHN or JANE" DOES, actual identities  
presently unknown, THE CITY OF NEW YORK and  
NEW YORK CITY POLICE DEPARTMENT,

Defendants.

INDEX NO.

**VERIFIED COMPLAINT**

Plaintiff, by his attorneys, ASHER & ASSOCIATES, P.C., as and for his Verified  
Complaint, respectfully alleges, upon information and belief:

1. The plaintiff, KINGSLEY LEWIS II, at all times herein mentioned was and still is a resident of the County of Westchester, City and State of New York.
2. Defendant CITY OF NEW YORK (hereinafter "CITY") is a municipal corporation, incorporated pursuant to the laws of the State of New York, which operates the New York City Police Department (hereinafter "NYPD"), and as such is the public employer of the Defendant officers herein.
3. Defendant POLICE OFFICER STEPHAN KROSKI (Shield #13842) (hereinafter "KROSKI") was an NYPD police officer, and at all times relevant hereto, acted in that capacity as agent, servant, and/or employee of Defendant CITY and within the scope of his employment.
4. On or about March 12, 2014, the defendant POLICE OFFICER KROSKI was assigned

to the 25th Precinct of the NYPD at the time of the occurrences alleged in this complaint. He is being sued in both his individual and official capacities.

5. Defendant POLICE OFFICER JAMES FEOLA (Shield #22100) (hereinafter "FEOLA") was an NYPD police officer, and at all times relevant hereto, acted in that capacity as agent, servant, and/or employee of Defendant CITY and within the scope of his employment.

6. On or about March 12, 2014, the defendant POLICE OFFICER FEOLA was assigned to the 25th Precinct of the NYPD at the time of the occurrences alleged in this complaint. He is being sued in both his individual and official capacities.

7. Defendant POLICE OFFICER FRANKIE SOLER (Shield #27130) (hereinafter "SOLER") was an NYPD police officer, and at all times relevant hereto, acted in that capacity as agent, servant, and/or employee of Defendant CITY and within the scope of his employment.

8. On or about March 12, 2014, the defendant POLICE OFFICER SOLER was assigned to the 25th Precinct of the NYPD at the time of the occurrences alleged in this complaint. He is being sued in both his individual and official capacities.

9. Defendant POLICE OFFICER "JOHN/JANE DOES" were NYPD police officers, and at all times relevant hereto, acted in that capacity as agent, servant and/or employee of Defendant CITY and within the scope of their employment..

10. On or about March 12, 2014, the defendant POLICE OFFICERS "JOHN/JANE DOES" were assigned to the 46th Precinct of the NYPD at the time of the occurrences alleged in this complaint. They are being sued in both their individual and official capacities.

11. At all relevant times hereto, Defendants were acting under the color of state and local law.

12. Defendants are sued in their individual and official capacities.

13. At all relevant times hereto, Defendant CITY was responsible for making and enforcing the policies of NYPD and was acting under the color of law, to wit, under the color of the statutes, ordinances, regulations, policies, customs and usages of the State of New York and/or the City of New York.

14. At all times hereinafter mentioned, the defendant NYPD had the duty to provide, supervise and control the city streets and protect the well-being and safety of the public.

15. At all relevant times, the defendant NEW YORK was responsible for the training of its police officers, and more particularly, the individually named defendants KROSKI, FEOLA and SOLER.

16. On March 12, 2014 at approximately 8:00 p.m., the plaintiff KINGSLEY LEWIS II was walking from Madison Avenue to Park Avenue through a NYCHA complex when he was approached behind premises located at 2301 Fifth Avenue, New; York, New York by multiple undercover members of the NYPD, including the individually named defendants herein KROSKI, FEOLA and SOLER, and subjected to both verbal and physical abuse.

17. On March 12, 2014, at the aforementioned location, the plaintiff was thrown to the ground, stepped on and beat up by multiple members of the NYPD, including the individually named defendants herein KROSKI, THOMAS ORELLANA and LEBBY.

18. On March 12, 2014, the plaintiff, KINGSLEY LEWIS II was punch, kicked, stomped, brutalized and beaten prior to and while being handcuffed and forcibly detained by multiple

members of the NYPD, including the individually named defendants herein KROSKI, FEOLA and SOLER.

19. On March 12, 2014, multiple members of the NYPD, including the individually named defendants herein KROSKI, FEOLA and SOLER brought plaintiff KINGSLEY LEWIS II by ambulance to the hospital.

20. On March 12, 2014, the plaintiff KINGSLEY LEWIS II was arrested and charged with Penal Law §§10/215.40(2) and 220.03. All charges were dismissed.

21. Based upon information and belief, the officers, including the individually named defendants KROSKI, FEOLA and SOLER possessed no warrants, had no permission nor consent, nor any legal justification for their actions.

22. On March 12, 2014, plaintiff KINGSLEY LEWIS II was caused to suffer severe personal injuries.

**AS AND FOR A FIRST CAUSE OF ACTION**  
**ON BEHALF OF PLAINTIFF KINGSLEY LEWIS II**  
Pursuant to § 1983 (FALSE ARREST)

23. Paragraphs 1 through 21 of this complaint are hereby realleged and incorporated by reference herein.

24. That Defendants had neither valid evidence for the arrest of KINGSLEY LEWIS II nor legal cause or excuse to seize and detain him.

25. That in detaining KINGSLEY LEWIS II and without a fair and reliable determination of probable cause, Defendant CITY abused its power and authority as a policymaker of the New York City Police Department under the color of State and/or local law. It is alleged that CITY, via their agents, servants and employees routinely charged

persons with crimes they did not commit. KINGSLEY LEWIS II was but one of those persons.

26. Upon information and belief, it was the policy and/or custom of Defendant CITY to inadequately supervise and train its officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.

27. As a result of the above described policies and customs, the officers, staff, agents and employees of Defendant CITY believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated. In addition, the City of New York had and has a policy, custom, and/or practice of detaining persons for an excessive period of time prior to arraignment.

28. The above described policies and customs demonstrated a deliberate indifference on the part of the policymakers of the CITY to the constitutional rights of arrestees and were the cause of the violations of KINGSLEY LEWIS II's rights alleged herein.

29. By reason of Defendants acts and omissions, Defendant CITY, acting under color of state law and within the scope of its authority, in gross and wanton disregard of KINGSLEY LEWIS II's rights, subjected KINGSLEY LEWIS II to an unlawful detention, in violation of the Fourth and Fourteenth Amendments of the United States Constitution and the laws of the State of New York.

30. That Defendants had the opportunity to intervene, and failed to do so, to prevent violations of KINGSLEY LEWIS II's civil rights, including but not limited to the right to be free from being falsely arrested.

31. By reason of the foregoing, KINGSLEY LEWIS II suffered physical injuries, mental injuries, deprivation of liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.

**AS AND FOR A SECOND CAUSE OF ACTION**  
**ON BEHALF OF PLAINTIFF KINGSLEY LEWIS II**  
Pursuant to §1983 (EXCESSIVE FORCE)

32. Paragraphs 1 through 30 are hereby realleged and incorporated by reference herein.

33. That the incident that resulted from the intentional application of physical force by Defendants constituted a seizure. That the use of excessive force in effectuating the seizure was unreasonable under the circumstances.

34. That Defendants had no legal cause or reason to use excessive force in effectuating KINGSLEY LEWIS II's arrest or after KINGSLEY LEWIS II was arrested and in custody.

35. That Defendants violated KINGSLEY LEWIS II's Fourth and Fourteenth Amendment right to be free from unreasonable seizures when they used excessive force against him.

36. That at the time of the arrest or while in custody, KINGSLEY LEWIS II did not pose a threat to the safety of the arresting officers.



37. That KINGSLEY LEWIS II was not actively resisting arrest or attempting to evade arrest.

38. That Defendant CITY, through its officers, agents, and employees, unlawfully subjected KINGSLEY LEWIS II to excessive force while effectuating his arrest.

39. That Defendants' actions were grossly disproportionate to the need for action and were unreasonable under the circumstances.

40. That by reason of Defendants acts and omissions, acting under color of state law and within the scope of his authority, in gross and wanton disregard of KINGSLEY LEWIS II's rights, subjected KINGSLEY LEWIS II to excessive force while effectuating his arrest, in violation of his rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution.

41. That Defendants had the opportunity to intervene, and failed to do so, to prevent violations of KINGSLEY LEWIS II's civil rights, including but not limited to the right to be free from the application of excessive force.

42. That upon information and belief, in 2014, Defendants and CITY had a policy or routine practice of using excessive force when effectuating arrests.

43. That upon information and belief, it was the policy and/or custom of defendant CITY to inadequately train, supervise, discipline, and/or terminate their officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.

44. That as a result of the above described policies and customs, the officers, staff, agents and employees of defendant CITY, believed that their actions would not be properly

monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

45. That the above described policies and customs demonstrate a deliberate indifference on the part of the policymakers of Defendant CITY to the constitutional rights of arrestees and were the cause of the violations of KINGSLEY LEWIS II's rights alleged herein.

46. By reason of the foregoing, KINGSLEY LEWIS II suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

44. The aforementioned use of excessive force in effectuating the wrongful arrest and detention of the plaintiff by KROSKI, FEOLA and SOLER and JOHN/JANE DOES, violated the plaintiff's constitutional rights.

45. This action arises under the United States Constitution, particularly under the provisions of the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States, and under Federal law, particularly Title 42 of the United State Code, Section 1983.

46. Each and all of the acts of the defendants were done by the defendants, each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the City and State of New York, County of the Bronx, and under the authority of their office as police officers for such city and county.

**AS AND FOR A THIRD CAUSE OF ACTION**  
**ON BEHALF OF PLAINTIFF KINGSLEY LEWIS II**  
Pursuant to § 1983 (MALICIOUS PROSECUTION)

47. Paragraphs 1 through 45 are hereby realleged and incorporated by reference herein.

48. That Defendants, with malicious intent, arrested KINGSLEY LEWIS II and initiated a criminal proceeding despite the knowledge that KINGSLEY LEWIS II had committed no crime.

49. That all charges against KINGSLEY LEWIS II were terminated in his favor.

50. That there was no probable cause for the arrest and criminal proceeding.

51. That by reason of Defendants' acts and omissions, Defendants, acting under the color of state law and within the scope of their authority, in gross and wanton disregard of KINGSLEY LEWIS II's rights, deprived KINGSLEY LEWIS II of his liberty when they maliciously prosecuted him and subjected him to an unlawful, illegal and excessive detention, in violation of his rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution.

52. That upon information and belief, Defendants had a policy and /or custom of maliciously prosecuting individuals despite the lack of probable cause. Thus, as a result of the above described policies and customs, KINGSLEY LEWIS II was maliciously prosecuted despite the fact that he had committed no violation of the law.

53. That upon information and belief it was the policy and /or custom of defendant CITY to inadequately hire, train, supervise, discipline and /or terminate their officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents, and employees.

54. That as a result of the above described policies and customs, defendant CITY, its staff, agents and employees of defendant CITY believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

55. That the above described policies and customs demonstrate a deliberate indifference on the part of the policymakers of Defendant CITY to the constitutional rights of arrestees and were the cause of the violations of KINGSLEY LEWIS II's rights alleged herein.

56. That in so acting, Defendant CITY abused its power and authority as policymaker of the NYPD under the color of State and/or local law.

57. That upon information and belief, in 2012, Defendant CITY had a policy or routine practice of alleging facts against persons for the purpose of charging crimes they did not commit.

58. That by reason of the foregoing, KINGSLEY LEWIS II suffered physical and psychological injuries, traumatic stress, post-traumatic stress disorder, mental anguish, economic damages including attorneys' fees, damage to reputation, shame, humiliation, and indignity. All of said injuries may be permanent.

WHEREFORE, KINGSLEY LEWIS II respectfully requests that judgment be entered:

1. Awarding KINGSLEY LEWIS II compensatory damages in a full and fair sum to be determined by a jury;
2. Awarding KINGSLEY LEWIS II punitive damages in an amount to be determined by a jury;

3. Awarding KINGSLEY LEWIS II interest from March 12, 2014 and
4. Awarding KINGSLEY LEWIS II reasonable attorney's fees pursuant to 42 USC §1988; and
5. Granting such other and further relief as to this Court seems proper.

Dated: New York, New York  
March 13, 2017

  
By: Roberta D. Asher  
ASHER & ASSOCIATES, P.C.  
Attorneys for Plaintiff  
111 John Street  
Fourteenth Floor  
New York, New York 10038  
(212) 227-5000

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

KINGSLEY LEWIS II,

Plaintiff,

-against-

P.O. STEPHAN KROSKI (Shield #13842), P.O. JAMES FEOLA  
(Shield #22100), P.O. FRANKIE SOLER (Shield #27130),  
POLICE OFFICERS "JOHN or JANE" DOES, actual identities  
presently unknown, THE CITY OF NEW YORK and  
NEW YORK CITY POLICE DEPARTMENT,

Defendants.

INDEX NO.

**ATTORNEY'S  
VERIFICATION**

Roberta D. Asher, an attorney duly admitted to practice law in the State of New York,  
makes the following affirmation under the penalty of perjury:

I am of the firm of ASHER & ASSOCIATES, P.C., the attorneys of record for the  
plaintiff.

I have read the foregoing Complaint and know the contents thereof; the same is true to  
my own knowledge except as to the matters therein stated to be alleged on information and  
belief and that as to those matters, I believe them to be true.

This verification is made by affirmant and not by plaintiff because he is not in the  
County of New York, which is the County where your affirmant maintains offices.

The grounds of affirmant's belief as to all matters not stated upon affirmant's  
knowledge are correspondence had with the said plaintiff, information contained in the said  
plaintiff's file, which is in affirmant's possession, and other pertinent data relating thereto.

Dated: New York, New York  
March 13, 2017

  
ROBERTA D. ASHER

Index No.

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

KINGSLEY LEWIS II,

Plaintiff,

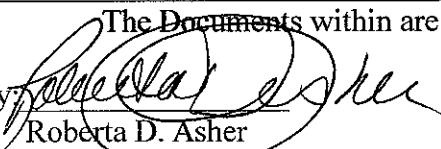
-against-

P.O. STEPHAN KROSKI (Shield #13842), P.O. JAMES FEOLA (Shield #22100),  
P.O. FRANKIE SOLER (Shield #27130), POLICE OFFICERS "JOHN or JANE" DOES,  
actual identities presently unknown, THE CITY OF NEW YORK and  
NEW YORK CITY POLICE DEPARTMENT,

Defendants.

**SUMMONS and VERIFIED COMPLAINT**

The Documents within are hereby certified pursuant to 22 N.Y.C.R.R. 130-1.1-a:

By 

Roberta D. Asher

**ASHER & ASSOCIATES, P.C.**

Attorneys for Plaintiff  
111 John Street  
Fourteenth Floor  
New York, New York 10038  
(212) 227-5000

PLEASE TAKE NOTICE  
NOTICE OF  
ENTRY

that the within is a (certified) true copy of a                      duly entered in the office of the Clerk  
of the                      within named                      Court on                      , 2017 .

NOTICE OF  
SETTLEMENT

that an                      of which the within is a true copy will be presented to the Hon.                      one of  
the                      of the within                      named Court, at                      ,                      New York, on                      ,                      2017 , at  
9:30 A.M.

Dated: